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Case Number: 25SMCV06165 Hearing Date: July 9, 2026 Dept: P

Tentative Ruling

Taylor Megdal v. Doe

1, et al., Case No. 25SMCV06165

Geneva Maschler's

Motion to Set Aside Default Judgment

Hearing Date: July 9,
2026

Background

Plaintiff Taylor Megdal ("Megdal"), an attorney appearing in pro per, sues Defendant Geneva Maschler ("Maschler") for fraud, breach of contract, violation of the UCL, and negligence, claiming that Maschler fraudulently failed to disclose a tenant when she sold Plaintiff a six-unit, tenant-occupied property located at 1241 21st Street, Santa Monica, CA.

On November 25, 2025, Megdal filed the complaint.

On January 21, 2026, Megdal filed proof of service by substituted service attesting that Plaintiff was served on December 21, 2025.

On February 9, 2026, Megdal entered default against Maschler.

On April 6, 2026, the Court granted default judgment against Maschler for \$886,925.28.

On May 14, 2026, Maschler filed this motion to set aside default and a demurrer. On June 24, 2026, Megdal filed opposition. On July 1, 2026, Maschler replied.

Arguments

Maschler brings this motion to set aside default on the grounds that Megdal improperly served her. Maschler argues that despite the fact that Maschler's sub-tenant received service and texted Maschler images of the complaint in December 2025. (Motion to Set Aside, p. 3.) Maschler contends that service was improper because Maschler was not permanently residing at the Santa Barbara address where she was served. (Ibid.) Maschler also argues that default should be set aside due to excusable neglect because Megdal's service was improper and because Maschler received notice of the complaint during the height of Mammoth Lakes ski season, while she was preparing for a three-month trip to Japan from which she only recently returned. (Id. at pp. 6-7.) Maschler argues that despite her vacation, she was able to retain counsel in mid-March, 2026. (Ibid.) Maschler argues that the court lacks jurisdiction under Code Civ. Proc. § 473(d) because of Megdal's improper service. (Id. at p. 9.)

In opposition, Megdal argues that Maschler's motion should be denied because she had actual notice of the complaint, he properly served her by substituted service, and because Maschler does not identify any mistake or neglect that would justify setting aside default. (Opposition, pp. 3-5). Megdal also argues that the record is not clear that service was improper, so such a finding would be inappropriate without an evidentiary hearing. (Id. at pp. 6-7.)

In reply, Maschler contends that Megdal does not prove that Maschler was properly served because he does not submit evidence that the summons and complaint were mailed following substitute service. (Reply, p. 4.) Next, Maschler argued that Megdal failed to serve Maschler at her "usual mailing address," because he served her at her old Santa Barbara address and not at her current Mammoth Lakes address. (Id. at p. 5.) Finally, Maschler argues that service on her sub-tenant was improper because the sub-tenant was not a member of Maschler's household. (Id. at pp. 6-7.)

Motion to Set

Aside Default

CCP section 473(b) provides, in relevant part, that

“the court shall, whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, vacate any (1) resulting default entered by the clerk against his or her client, and which will result in entry of a default judgment, or (2) resulting default judgment or dismissal entered against his or her client, unless the court finds that the default or dismissal was not in fact caused by the attorney's mistake, inadvertence, surprise, or neglect.” (Id.)

Code of

Civ. Proc. § 473.5(a) also provides a mechanism for the court to set aside default judgment if service did not result in actual notice. “The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.” (Code Civ. Proc. § 473.5(a).)

Default

judgment may be set aside under Code Civ. Proc. § 473(d) if the judgment is void on its face. (Code Civ. Proc., § 473, subd. (d); *Kremerman v.*

White (2021) 71 Cal.App.5th 358, 360-70.) “ ‘ “A judgment or order is said to be void on its face when the invalidity is apparent upon an inspection of the judgment-roll.”

’ [Citation.] This inquiry, however, ‘does not hinge on evidence: A void judgment’s invalidity appears on the face of the record.’

[Citation.]” (*Kremerman v. White*, *supra*, 71 Cal.App.5th at p.

370.) “[C]ompliance with the statutory procedures for service of process is essential to establish personal jurisdiction.

[Citation.] Thus, a default judgment entered against a defendant who was not served with a summons in the manner prescribed by statute is void.

[Citation.]” (*Ellard v. Conway* (2001) 94 Cal.App.4th 540, 544.)

“The policy of the law favors a hearing on the merits.” (Purdum v. Holmes (2010) 187 Cal.App.4th 916, 922.) Therefore, when a party in default moves promptly to request relief, very slight evidence is required to justify a trial court's order setting aside a default. (Id.)

Analysis

a.

Code

Civ. Proc. § 473(b)

Maschler's

motions under both the mandatory and permissive provisions of § 473(b) fail because Maschler fails to identify any mistake or neglect her or her attorney's part or submit any evidence demonstrating that her or her attorney's mistake caused the default.

b.

Code

Civ. Proc. § 473.5

Maschler's

motion under Code Civ. Proc. § 473.5 also fails because Maschler admits she had actual notice of this suit when her sub-tenant, who received the substituted service, texted her with images of the complaint.

c.

Code

Civ. Proc. § 473(d)

Substituted

service on an individual is proper “[i]f a copy of the summons and complaint cannot with reasonable diligence be personally delivered to the person to be served, as specified in Section 416.60, 416.70, 416.80, or 416.90, a summons may be served by leaving a copy of the summons and complaint at the person's dwelling house, usual place of abode, usual place of business, or usual mailing address other than a United States Postal Service post office box, in the presence of a competent member of the household or a person apparently in charge of their office, place of business, or usual mailing

address other than a United States Postal Service post office box, at least 18 years of age, who shall be informed of the contents thereof, and by thereafter mailing a copy of the summons and of the complaint by first-class mail, postage prepaid to the person to be served at the place where a copy of the summons and complaint were left. Service of a summons in this manner is deemed complete on the 10th day after the mailing.” (Code Civ. Proc. § 415.20(b).)

Here, it

is disputed if the address Megdal served was Maschler’s “dwelling house, usual place of abode, usual place of business, or usual mailing address.” Maschler attests that she currently lives in “a custom home on Davison Road in Mammoth Lakes, California 93546,” and that she receives “mail at a Post Office Box at the 93546 US Postal office.” (Maschler-Fine Decl., ¶ 3.) Maschler does not provide a street address in Mammoth Lakes, and a plaintiff cannot make substituted service on a Post Office Box. (Code Civ. Proc. § 415.20(b).)

Maschler admits that the address Megdal served, 464 Terrace Road, Santa Barbara, CA, is a dwelling house where she lived until May 2024 that she currently sub-leases. Maschler does not submit any evidence of any other “usual place of abode” that Megdal could have served. Therefore, the Santa Barbara address is the only usual mailing address that Megdal could have served.

Next,

Maschler contends that Megdal did not mail a copy of the complaint and summons to Maschler after making substituted service. He did. (See Proof of Mailing (Substituted Service), filed January 23, 2026.)

Finally,

Maschler contends that Megdal did not serve a proper member of her household. Megdal served Maschler’s sub-tenant Alison Garcia, who was over 18 and was informed of the content of the papers. (See Proof of Service, filed January 23, 2026, p. 3.) “To be constitutionally sound the form of substituted service must be ‘reasonably calculated to give an interested party actual notice of the proceedings and an opportunity to be heard.’” (Zirbes v. Statton (1986) 187 Cal.App.3d 1407, 1417-1418.) In contrast with cases where service was found to be defective, Megdal believed that Maschler lived at the Santa Barbara address when he served her at that address. (See Megdal Decl., ¶¶ 3-4.) Where the person to be served actually received the summons, substantial compliance with substituted service requirements is sufficient. (Ramos v. Homeward Residential, Inc. (2014) 223 Cal.App.4th 1434, 1443 [“In general, substantial compliance with the code

occurs when, although not properly identified in a proof of service, the person to be served in fact actually received the summons. "]") Though Maschler did not actually receive the summons, she received notice that she had been sued from her sub-tenant. (Maschler-Fine Decl., ¶ 5.) She then chose not to do anything. (Id. at ¶ 6.) Megdal substantially complied with the requirements for substituted service.

Conclusion

The standard for granting a motion to set aside default is extremely low. Here, however, Maschler has failed to meet the extremely low standard under Code Civ. Proc. § 473(b) and has also failed to show that service was improper. Granting Maschler's motion under § 473(d) would be tantamount to a determination that it is impossible to serve her by substituted service. That is not the case.

Maschler's

Motion to Set Aside Default is DENIED without prejudice.